

Amendment No. 1 to HB1113

White
Signature of Sponsor

AMEND Senate Bill No. 1223

House Bill No. 1113*

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "Dennis "DJ" Price, Jr., In the Heart of an Athlete Act."

SECTION 2. Tennessee Code Annotated, Section 49-6-3601(c), is amended by deleting subdivision (2) and substituting:

(2) Shall review the safety standards recommended for each level of recognition provided as part of the safe stars advisory committee's "Safe Stars Initiative," and to communicate with the safe stars advisory committee to ensure that all safety measures are up to date for the LEA or public charter school.

SECTION 3. Tennessee Code Annotated, Section 49-6-3601(b), is amended by adding the following as a new subdivision:

(4) Before a student is allowed to participate in a school youth athletic activity, the student, or the student's parent or guardian, must submit to the school principal:

(A) A preparticipation medical evaluation form signed by a doctor of medicine, osteopathic physician, physician assistant, or certified nurse practitioner stating that the student has passed a physical examination conducted within the last six (6) months, and that the student is physically fit to participate in a school youth athletic activity; or

(B) A statement written and signed by the student's parent or legal guardian or the student, if the student is eighteen (18) years of age or older, refusing a preparticipation medical evaluation on the grounds that a

preparticipation medical evaluation conflicts with the sincerely held religious beliefs of the student, parent, or guardian, as applicable.

SECTION 4. Tennessee Code Annotated, Section 49-6-3602, is amended by deleting the section and substituting:

(a) There is created a safe stars advisory committee to develop guidelines and other relevant materials to inform and educate students, parents, and coaches about:

(1) The nature and warning signs of sudden cardiac arrest and the risks associated with continuing to play or practice after experiencing one (1) or more symptoms of sudden cardiac arrest, which include fainting, difficulty breathing, chest pains, dizziness, and an abnormal or racing heart rate;

(2) Electrocardiogram (EKG) testing; and

(3) The student's or parent's ability to request, from the student's family medical provider, that an EKG be administered to the student in addition to the student's comprehensive initial preparticipation physical examination, at a cost to be incurred by the student or the student's parent.

(b) The safe stars advisory committee consists of the following members:

(1) The commissioner of education or the commissioner's designee;

(2) The commissioner of health or the commissioner's designee;

(3) A member of the committee of the house of representatives having jurisdiction over education, who is appointed by the speaker of the house of representatives;

(4) A member of the education committee of the senate, who is appointed by the speaker of the senate;

(5) A member of the committee of the house of representatives having jurisdiction over health, who is appointed by the speaker of the house of representatives;

(6) A member of the health and welfare committee of the senate, who is appointed by the speaker of the senate;

(7) A representative from an association that regulates interscholastic athletics in this state, who is appointed by the speaker of the senate;

(8) A representative from a children's hospital in the eastern grand division, who is appointed by the speaker of the senate;

(9) A representative from a children's hospital in the middle grand division, who is appointed by the speaker of the house of representatives; and

(10) A representative from a children's hospital in the western grand division, who is appointed by the speaker of the house of representatives.

(c) In order to stagger terms, an initial appointee who is appointed pursuant to subdivisions (b)(3)-(6) serves a one-year term, and an initial appointee who is appointed pursuant to subdivisions (b)(7)-(10) serves a two-year term. Members appointed to succeed the initial members of the committee serve a term of two (2) years.

(d) All members of the committee serve without compensation, but are eligible for reimbursement for travel expenses in accordance with the comprehensive travel regulations as promulgated by the department of finance and administration and approved by the attorney general and reporter.

(e) The safe stars advisory committee shall:

(1) Develop a sudden cardiac arrest symptoms and warning signs information sheet that includes information about electrocardiogram EKG testing for purposes of § 49-6-3603. The information sheet must address the benefits and limitations of EKG testing;

(2) Develop guidelines and materials for purposes of subsection (a);

(3) Provide the guidelines and materials developed pursuant to subsection (a) to the department of education and department of health to publish on their websites; and

(4) Meet at least once each year to review and update, if necessary, the guidelines and materials developed by the committee.

(f) The safe stars advisory committee may utilize materials developed by outside organizations in developing guidelines and materials to inform and educate students, parents, and coaches of sudden cardiac arrest symptoms and warning signs and an information sheet that includes information about electrocardiogram (EKG) testing for purposes of § 49-6-3603.

(g) The department of health and the department of education shall publish the guidelines and materials provided by the safe stars advisory committee pursuant to subdivision (e)(3) on the department's website

SECTION 5. Tennessee Code Annotated, Section 49-6-3603(a), is amended by deleting the "department of education" and substituting "safe stars advisory committee".

SECTION 6. This act takes effect July 1, 2025, the public welfare requiring it.